

Application of Resp 1-3
dt - 15/2/2025

**BEFORE THE SOLE ARBITRATOR SR. ADV. NITIN N.P.
SARDESSAI AT PANAJI - GOA**

VIKRAM SHAH

...CLAIMANT

V/S

RIVA TRINDADE AND ORS

...RESPONDENT



APPLICATION SEEKING MODIFICATION
OF MINUTES OF PROCEEDINGS DATED 26-
08-2024

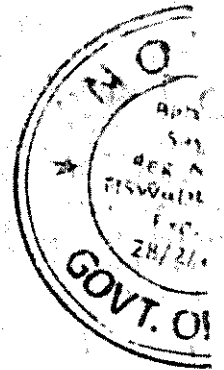
MAY IT PLEASE YOUR HONOUR

The Respondent Nos. 1 to 3 above named most respectfully beg
to state and submit as under:

1. The disputes in respect of which the reference has been made before this Hon'ble Arbitral Tribunal are in respect of the Articles of Association dated 01-04-2013, which was a tripartite agreement entered into between Mr.

Vikram Shah (the Claimant), Mr. Pascoal Trindade (predecessor-in-title of the Respondent Nos. 1 to 3 herein), and Mr. Murilidhar Sadarangani (the Respondent No. 4 herein).

2. It is stated and submitted that on 17-01-2022, Mr. Pascoal Trindade expired leaving behind his widow and moiety holder - Mrs. Albertina Trindade, his son Mr. Riva Trindade and his daughter-in-law Mrs. Karita Trindade.
3. The Claimant herein issued Notice of Arbitration dated 28-02-2024 seeking reference of the alleged disputes to a Sole Arbitrator, which was replied to by the Respondent Nos. 1 to 3 vide Reply dated 11-03-2024, being the widow/moiety holder and Legal Heirs of the late Pascoal Trindade, inter alia opposing the arbitration reference, and accordingly, the Claimant filed AAR No. 13/2024 under Section 11 of



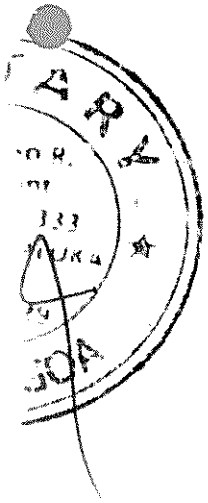
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the Arbitration and Conciliation Act, 1996 (the said Act) seeking appointment of an arbitrator.

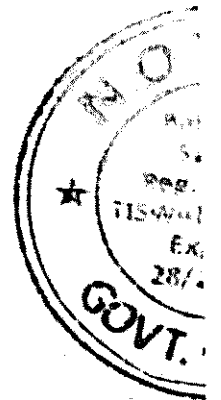
4. Consequent to Order dated 07-04-2024 passed by the Hon'ble High Court of Bombay at Goa in AAR No. 13/2024, the present Arbitral Tribunal came to be constituted.

5. The Minutes of the Proceedings held on 26-08-2024 record that the Hon'ble Arbitral Tribunal issued notice to the Respondent Nos. 1 to 5, and whereas Adv. Kaif Noorani waived notice for the Vikram Shah (Claimant), Adv. Raunaq Rao waived notice for Shri Murlidhar Sadarangani (Respondent No. 4).

6. The said Minutes of the Proceedings held on 26-08-2024 further record that:



"All the costs and fees pertaining to the arbitration shall be borne equally by the contesting parties. The fees payable shall be in terms of the 4th Schedule to the Arbitration and Conciliation Act, 1996 since the appointment is made by the Hon'ble High Court of Bombay at Goa. Initially all the contesting parties shall deposit by 06-09-2024, an amount of Rs. 3,00,000/- each in account of the Arbitrator by NEFT or RTGS..."



7. It is stated and submitted that the said direction that 'all contesting parties shall deposit an amount of Rs. 3,00,000/- each' is not in consonance with the scheme as envisaged under the provisions of the Arbitration and Conciliation Act, 1996.

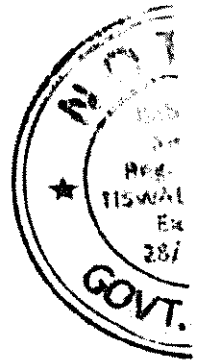
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8. It is submitted that while Section 38(1) of the Act enables the arbitral tribunal to fix the amount of the deposit or supplementary deposit, as an advance for the costs referred to in sub-section (8) of Section 31 of the Act; Section 38(2) of the Act categorically stipulates that the deposit referred to in Section 38(1) of the Act shall be payable in equal shares by the parties to the arbitration agreement.

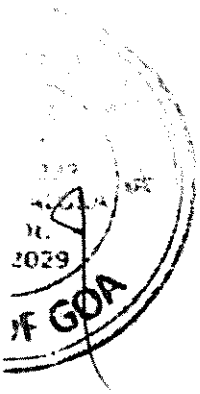
9. As such, any direction that the costs and fees pertaining to the arbitration shall be borne equally by the contesting parties would be contrary to the mandate of the Act, in as much as it results in a situation where in the Respondent Nos. 1 to 3 as the widow and legal representatives of the said Pascoal Trindade are expected to shoulder a disproportionate portion of the deposit for a fact that despite the Articles of Association dated 01-04-2013 being a tripartite agreement with Vikram Shah, Mr. Pascoal



Trindade, and Mr. Murilidhar Sadarangani as parties and the scheme of the Arbitration and Conciliation Act, 1996 expressly contemplating that the costs pertaining to the arbitration are required to be borne equally by the parties, the distribution of costs as envisaged in the Minutes of Proceedings dated 26-08-2024 is not in consonance with the provisions of the Arbitration and Conciliation Act, 1996, in as much as the deposit of Rs. 9,00,000/- which has been required to be deposited by the widow, son, and daughter-in-law of late Pascoal Trindade, apart from being disproportionate, amounts to the three times the deposit, which the Claimant and the Respondent No. 4 being the other two parties of the tripartite agreement have been ordered to be paid, which in normal circumstances and in keeping with the requirement of equal deposit by each of the parties to the Articles of Association dated 01-04-2013 would require a deposit of Rs. 5,00,000/- by each of the



parties to the Articles of Association dated 01-04-2013, even if the total cost required to be deposited were quantified in the sum of Rs. 15,00,000/- to be borne equally by the three parties to the said Articles of Association dated 01-04-2013.

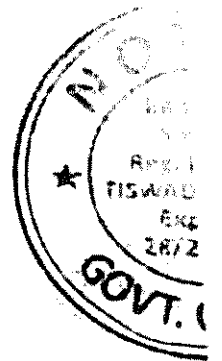


10. The Respondent Nos. 1, 2, and 3 as the widow and legal representatives of late Pascoal Trindade have effected payment of an amount of Rs. 6,00,000/- with this Hon'ble Tribunal and are ready and willing to comply with orders of this Hon'ble Tribunal, as may be suitably modified by this Hon'ble Tribunal in keeping with the requirement under the provisions of the Arbitration and Conciliation Act, 1996, so that the costs and fees pertaining to the arbitration proceedings are borne equally by the parties to the arbitration agreement i.e. the Articles of Association

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dated 01-04-2013 and the necessary adjustment may be effected by this Hon'ble Tribunal.

11. Accordingly, it is just, fit and proper that the Minutes of Proceedings dated 26-08-2024 be suitably modified to direct that the costs and fees pertaining to the arbitration proceedings shall be borne equally by the parties to the arbitration agreement i.e. the Articles of Association dated 01-04-2013.



It is therefore **PRAYED** that

- a) This Hon'ble Tribunal be accordingly pleased suitably modified the Minutes of Proceedings dated 26-08-2024 direct that the costs and fees pertaining to the arbitration proceedings shall be borne equally by the parties to the arbitration

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agreement i.e. the Articles of Association

dated 01-04-2013

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PANAJI – GOA

RESPONDENT NOS. 1 TO 3

15-02-2025 ADVOCATE FOR RESPONDENT NOS. 1 TO 3

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GOA

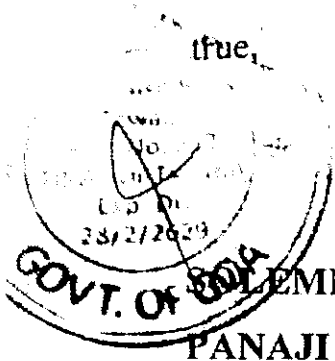
AFFIDAVIT

I, Riva Anthony Trindade, son of Late Pascoal Trindade, 52 years of age, Indian National, Business, Having address at House No. Post Office NIO, House No. 21/23/A, Dona Paula, Goa do hereby on solemn affirmation beg to state that whatever stated is based on facts true to my own knowledge and the submissions

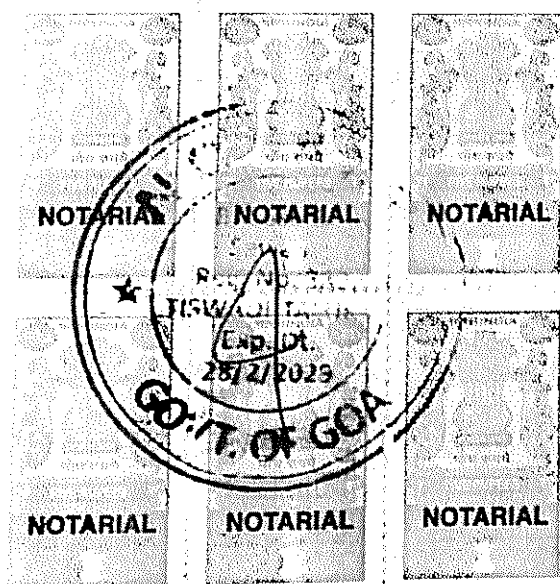
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therein contained are either in the nature of inferences of fact
and/or submissions based on legal advice which I believe to be

true,


SOLEMNLY AFFIRMED AT
PANAJI ON THIS 15th DAY
OF FEBRUARY 2025


DEPONENT



SOLEMNLY AFFIRMED AND VERIFIED

BEFORE ME BY M. Riva

Anthony T. Riva

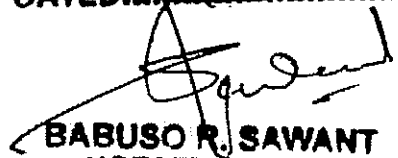
WHO IS IDENTIFIED BEFORE ME BY

MUN. CrA 07-2006087738

WHOM I KNOW PERSONALLY.

REG. No. 262/2025

DATED 15/2/2025


BABUSO R. SAWANT
NOTARY PUBLIC
PANAJI-GOIA
INDIA